

3-7. 23CV02667 PARRISH SCARBROUGH, MELISSA V. LALLY, KULWINDER ET AL

- EVENTS: (1) Plaintiff Melissa Parrish Scarbrough's Motion to Compel Further Responses to Form Interrogatories (Employment) Set One and Request for Terminating, Issuance [sic], and Monetary Sanctions Against Defendant Kulwinder Lally dba Eazy Stop Market and its Attorney*
- (2) Plaintiff Melissa Parrish Scarbrough's Motion to Compel Further Responses to Form Interrogatories (Employment) Set One and Request for Terminating, Issuance [sic], and Monetary Sanctions Against Defendant Kuldeep Lally dba Eazy Stop Market and its Attorney*
- (3) Plaintiff Melissa Parrish Scarbrough's Motion to Compel Further Responses to Form Interrogatories (Employment) Set One and Request for Terminating, Issuance [sic], and Monetary Sanctions Against Defendant Harry Hawinder and its Attorney*
- (4) Plaintiff Melissa Parrish Scarbrough's Motion to Compel Compliance with the Court's March 11, 2026 Discovery Order; Request for Monetary, Terminating and Issue Sanctions Against Defendants Kulwinder Lally dba Eazy Stop Market, Kuldeep Lally dba Eazy Stop Market, Harry Harwinder and Their Attorney*
- (5) Plaintiff's Motion for Issue, Evidence, Terminating and Monetary Sanctions in the Amount of \$1,732.30 and to Strike Defendants' Answer*

Plaintiff Melissa Parrish Scarbrough's ("Plaintiff" herein) (1) Motion to Compel Further Responses to Form Interrogatories (Employment) Set One and Request for Terminating, Issuance [sic], and Monetary Sanctions Against Defendant Kulwinder Lally dba Eazy Stop Market and its Attorney; (2) Motion to Compel Further Responses to Form Interrogatories (Employment) Set One and Request for Terminating, Issuance [sic], and Monetary Sanctions Against Defendant Kuldeep Lally dba Eazy Stop Market and its Attorney; and (3) Motion to Compel Further Responses to Form Interrogatories (Employment) Set One and Request for Terminating, Issuance [sic], and Monetary Sanctions Against Defendant Harry Harwinder and its Attorney are unopposed and are granted, in part. Defendant Kulwinder Lally shall provide further verified responses, without objection to Plaintiff's Form Interrogatories – Employment Set One Nos. 200.1, 201.6, 211.1, 211.2, 211.3, 214.1, and 216.1; and Defendants Kuldeep Lally and Harry Harwinder, shall provide further verified responses, without objection to Plaintiff's Form Interrogatories – Employment Set One Nos. 200.1, 201.5, 201.6, 211.1, 211.2, 211.3, 214.1, and 216.1, which are as follows: within 14 days' of the hearing on these Motions.

While the Court finds that neither issue nor terminating sanctions are warranted on this record, the Court does award additional monetary sanctions against Defendant Kulwinder Lally and his attorney of record, David Collins, in the amount of \$782.30; against Defendant Kuldeep Lally and his attorney of record, David Collins, in the amount of \$432.30; and against Defendant Harry Harwinder and his attorney of record, David Collins, in the amount of \$432.30. These sanctions, totaling \$1,646.90, are to be paid to

Plaintiff within thirty (30) days of the hearing on this Motions. The Court will utilize the forms of order submitted by Plaintiff.

Plaintiff Melissa Parrish Scarbrough's Motion to Compel Compliance with the Court's March 11, 2026 Discovery Order; Request for Monetary, Terminating and Issue Sanctions Against Defendants Kulwinder Lally dba Eazy Stop Market, Kuldeep Lally dba Eazy Stop Market, Harry Harwinder and Their Attorney, is unopposed and is granted in part. While the Court finds that neither issue nor terminating sanctions are warranted on this record, the Court does award additional monetary sanctions against Defendants Kulwinder Lally, Kuldeep Lally, and Harry Harwinder and their attorney of record, David Collins, in the amount of \$787.30. These sanctions are to be paid to Plaintiff within thirty (30) days of the hearing on this Motion. The Court will utilize the form of order submitted by Plaintiff.

Finally, as to Plaintiff's Motion for Issue, Evidence, Terminating and Monetary Sanctions in the Amount of \$1,732.30 and to Strike Defendants' Answer, the Court finds that the request for monetary sanctions is duplicative of the sanctions requested and ordered in relation to the Plaintiff's Motion to Compel Compliance with the Court's March 11, 2026 Discovery Order and this duplicative request is therefore denied. The Court further finds that there has been no showing of ongoing and willful disobedience of a Court's discovery order nor blatant and ongoing abuse of the discovery process that rises to the level of discovery abuse to support terminating sanctions. As such, terminating sanctions are not warranted on this record. See, *Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc.* (2008) 163 Cal.App.4th 1093. Likewise, as to issue and evidentiary sanctions, the Court similarly finds that such are not warranted here. The Motion is denied in its entirety.

The Court also advances the Case Management Conference on June 10, 2026 at 10:30 a.m. to 9:00 a.m. and continues the Case Management Conference to September 9, 2026 at 10:30 a.m. Case Management Statements are to be timely filed and served.

8. 24CV00332 TALCALO, ALEXANDRA V. LARA, ANTHONY ET AL

EVENT: Defendants City of Gridley and Anthony Lara's Motion for Summary Judgment or, in the Alternative, Summary Adjudication

Defendants City of Gridley and Anthony Lara's (collectively "Defendants" herein) Objections to Plaintiff Alexandra Tacalo's Evidence in Support of Her Opposition are overruled in their entirety. The Court finds that triable issues of material fact exist as to whether Plaintiff was lawfully detained and arrested, and whether Officer Lara used objectively justifiable and reasonable force [see Undisputed Material Fact Nos. 10, 19-21, 25-36, 40, 42, 44, 46-55, and 57], as such Defendants' Motion for Summary Judgment is denied. In regard to the Motion for Summary Adjudication, argued in the alternative, as to Issue No. One [Plaintiff was Lawfully Detained and Arrested Thus Her Theory for Unlawful Detention Under Her First Cause of Action is Subject to Dismissal], Issue No. Two [Plaintiff's Theory for Excessive Force Under Her First Cause of Action Must be Dismissed Because Officer Lara Used Objectively Reasonable Force Under the